

12 @C1P29

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C1P28 Although this may surprise the uninitiated, most lawyers who handle divorce and custody litigation in family courts are poorly equipped to deal with charges of sexual abuse that arise in child custody litigation. In *Hostage Child*, Rosen and Etlin (1996) give many examples of woefully inadequate legal representation in child abuse cases, citing, among other instances, a Texas mother who "pressed for a speedy trial on her daughter's best interests" only to have her attorney "threaten to quit rather than try the case" (p. 79). Her experience was not exceptional: in 1991, Colorado activist attorney Alan Rosenfeld testified at a New York City legislative hearing on family court malfunction that *most* attorneys are reluctant to pursue claims of child sexual abuse.<sup>23</sup>

C1P29 This attitude on the part of much of the matrimonial bar has the effect of making child sex abuse allegations much more difficult to pursue in the courts—and this is ironic in view of statistical evidence that such charges are seldom fabricated. In 1988, the American Bar Association in cooperation with the Association of Family and Conciliation Courts issued a report on an in-depth study of allegations of child sexual abuse made in the context of custody and visitation proceedings. Nicholson and Bulkley, who edited the report,<sup>24</sup> found that “[d]eliberately false allegations made to influence the custody decision or to hurt an ex-spouse

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Rosenfeld testified at a New York State law school symposium that *most* attorneys are reluctant to report sexual abuse.<sup>23</sup>

part of much of the matrimonial bar has raised these allegations much more difficult to pursue in view of statistical evidence that such claims are often false. In 1988, the American Bar Association, in its report on Family and Conciliation Courts, issued a study of allegations of child sexual abuse made in custody and visitation proceedings. Nicholson and his colleagues<sup>24</sup> found that “[d]eliberately false allegations are made by decision or to hurt an ex-spouse do happen. They are, however, rare among knowledgeable professionals as rarities” (p. 17). The report is contained in a highly respected treatise on the law of evidence, *Proof of Facts* (3rd ed., 1995), after thorough review of the custody/abuse debate, concludes: “[C]oaching and manipulation by law attorneys, hardened to the realities of the adversarial system, risk making, or supporting, a sex abuse allegation a tactical move. The article quoted above notes that “alleging child sexual abuse is neither an advantage” (contrary to popular belief) nor a claim such abuse in a custody proceeding is a “winning strategy. Even if true, the abuse allegation is often discredited by the opposing party’s attorney.”

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